

Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat

Allahabad High Court · Single Judge · 19 May 2016 · Writ-C No. 23249 of 2016 · **Stay of Permanent Lok Adalat award directing an additional 25 KVA transformer; listed for final disposal.**

HEADNOTE

Clause 4.2 of the U.P. Electricity Supply Code 2005 obliges the licensee to extend transformer capacity if load reaches 80% of installed capacity. A 100 KVA transformer carrying about 54 KVA need not be increased, strengthened, or replaced. A Permanent Lok Adalat award directing an additional 25 KVA transformer for a 7.5 KVA tubewell was, prima facie, illegal and was stayed pending disposal of the licensee's writ.

FACTUAL SUMMARY

Dakshinanchal Vidyut Vitran Nigam Ltd. and two others filed this writ against an award of the Permanent Lok Adalat dated 12 December 2015. The award directed installation of an additional 25 KVA transformer for respondent no. 2, who was running a 7.5 KVA tubewell. A 100 KVA transformer already supplied electricity to several consumers including that respondent. The admitted load on the transformer was 77.5 horse-power, equivalent to about 54 KVA.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

transformer-capacity-extension-at-80-percent-load

HOLDING

Clause 4.2 of the U.P. Electricity Supply Code 2005 obliges the distribution licensee to extend the capacity of a transformer if the load increases to 80% of the installed capacity. Where the admitted load on an existing 100 KVA transformer is about 54 KVA, the load is within capacity and the transformer need not be increased, strengthened, or replaced by one of higher capacity. A Permanent Lok Adalat direction to install an additional 25 KVA transformer for a 7.5 KVA tubewell is, prima facie, illegal. Operation of the award is stayed until further orders. ¶ 1

PRINCIPLE TAGS

no-retrospective-operation-of-supply-code-clause

Clause 4.2 of the U.P. Electricity Supply Code 2005 obliges the licensee to extend transformer capacity if load reaches 80% of installed capacity. A 100 KVA transformer carrying about 54 KVA need not be increased, strengthened, or replaced.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL VALIDITY OF THE PERMANENT LOK ADALAT AWARD DATED 12.12.2015

Stay is interlocutory. Counter and rejoinder were called; the writ was listed with Writ-C No. 23246 of 2016 for admission and final disposal. ¶ 1